

# WOML — Word of Mouth Leads

## PROVIDER AGREEMENT & LEGAL NOTICES

Effective Date: Upon Electronic Acceptance During Onboarding

This document sets forth the legal terms and notices that each Lead Provider must review and accept during the WOML onboarding process. By completing onboarding on womleads.com, you agree to all terms below. Please read carefully.

WOML is a private-channel lead generation platform operated by WOML LLC (Pennsylvania). Providers are invited by a specific business ("the Agency") and may only submit leads within that Agency's private channel.

### 1. Terms of Service

By creating an account and submitting leads through WOML, you agree to the following terms:

#### 1.1 Eligibility

- You must be at least 18 years old.
- You must be a lawfully operating business or individual authorized to provide referrals in your jurisdiction.
- You may only access WOML through an official invitation link issued by the Agency.

#### 1.2 Permitted Use

- You may use WOML solely to submit lead referrals to the Agency that invited you.
- You may not submit false, duplicate, or fabricated lead information.
- You may not share your invite link, account credentials, or platform access with any third party.
- You may not reverse engineer, scrape, or access any portion of the platform outside your authorized channel.

#### 1.3 Lead Submission Standards

- All submitted information must be accurate, current, and obtained with the lead's knowledge and consent.
- Leads must reflect genuine prospective customers with a real interest in the Agency's services.
- WOML and the Agency reserve the right to reject or dispute leads that do not meet quality criteria.

#### 1.4 Termination

- Either party may terminate this agreement. The Agency sets the termination notice period (typically 30–90 days) in their channel terms.
- WOML LLC may suspend or permanently revoke your access for any violation of these terms, at its sole discretion, without prior notice.

- Earned amounts for accepted leads prior to termination remain payable subject to the payment timeline.

### 1.5 Modifications

- WOML LLC may update these Terms at any time. Continued use constitutes acceptance. Material changes will be communicated via SMS or email.
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## 2. Privacy Policy

- WOML LLC is committed to protecting your personal information and the information of leads you submit.

### 2.1 Information We Collect

- Your name, email address, phone number, and profile photo (if uploaded).
- Your government-issued ID (collected during identity verification to comply with fraud prevention standards).
- Bank account / payout information (handled via Stripe — never stored directly by WOML).
- Lead data you submit (name, contact info, vehicle information, and any required fields specified by the Agency).
- Platform activity logs (lead submission timestamps, login events, IP address).

### 2.2 How We Use Your Information

- To verify your identity and eligibility as a provider.
- To process your payouts through Stripe Connect.
- To communicate with you about your account, payments, and platform updates.
- To fulfill 1099 tax reporting obligations if your annual earnings exceed \$600.
- To maintain platform security and prevent fraud.

### 2.3 Data Sharing

- Your basic profile (name, contact info) is shared with the Agency that invited you for lead verification purposes.
- Payout data is processed by Stripe. WOML does not store full bank account numbers.
- WOML does not sell your personal information to third parties.
- We may share data with law enforcement if required by law.

### 2.4 Lead Data Privacy

- All lead information you submit is shared exclusively with the Agency for which the lead was submitted.
- You represent that you have the lead's consent to share their contact and vehicle information.
- WOML operates private channels — no cross-business data sharing occurs.

### 2.5 Data Retention

- Account data is retained for the duration of your account plus 7 years (for tax and legal compliance).
  - You may request deletion of your personal data by contacting womleads@outlook.com, subject to legal retention obligations.
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### **3. Independent Contractor Agreement**

#### **3.1 Independent Contractor Status**

- You are an independent contractor, not an employee, agent, partner, or joint venture of WOML LLC or the Agency.
- You control the manner, method, and timing of your lead generation activities.
- You are solely responsible for your own taxes, insurance, licenses, and business expenses.
- WOML LLC will not withhold federal or state income taxes, Social Security, Medicare, or unemployment taxes from your earnings.

#### **3.2 Earnings & Payment**

- You will be compensated per accepted lead at the rate specified in your channel's Deal Terms.
- Payments are made via Stripe Connect to your linked bank account on the schedule defined by the Agency (e.g., weekly, bi-weekly, or monthly).
- WOML retains a platform fee from each transaction (disclosed in your Deal Terms).
- Payments for disputed or rejected leads may be withheld pending resolution.

#### **3.3 No Benefits**

- You are not entitled to employee benefits, including health insurance, paid time off, retirement plans, or workers' compensation through WOML LLC or the Agency.

#### **3.4 Indemnification**

- You agree to indemnify and hold harmless WOML LLC and the Agency from any claims, damages, or liabilities arising from your lead generation activities, including misrepresentation of leads or violation of applicable law.

#### **3.5 Governing Law**

- This agreement is governed by the laws of the Commonwealth of Pennsylvania.
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### **4. Lead Submission Standards**

#### **4.1 Accuracy Requirement**

- All lead information must be accurate and current at the time of submission.
- You must have personally spoken with or obtained explicit permission from the lead before submitting their information.
- Submitting leads without prior contact or consent constitutes a material breach.

#### **4.2 Prohibited Submissions**

- Duplicate leads (same individual submitted more than once within 30 days).
- Fabricated, purchased, or scraped contact lists.
- Leads for individuals who have requested not to be contacted.
- Leads for WOML employees, agents, or their immediate family members.

### 4.3 Quality Standards

- Leads must be for individuals who are actively in the market for the Agency's services.
- Photo submissions (e.g., vehicle photos, license plates) must be clear, unaltered, and taken at the time of the interaction.
- You must comply with all field-specific requirements set by the Agency in their Lead Criteria.

### 4.4 Dispute Resolution

- The Agency may dispute a lead within 5 business days of submission for quality violations.
- Disputed leads are reviewed by WOML. Our decision is final.
- Leads accepted without dispute after 5 business days are considered valid and payable.
- 5. 1099 / Tax Acknowledgment
- As an independent contractor, you are responsible for reporting and paying all applicable federal, state, and local taxes on your earnings from WOML.

### 5.1 IRS Form 1099-NEC

- If your total earnings through WOML exceed \$600 in a calendar year, WOML LLC will issue you an IRS Form 1099-NEC by January 31 of the following year.
- Earnings below \$600 are not reported on a 1099 but may still be taxable income — consult a tax professional.

### 5.2 Taxpayer Information

- You must provide accurate taxpayer information (legal name and Social Security Number or EIN) when requested.
- Failure to provide accurate taxpayer information may result in backup withholding at the applicable IRS rate.
- You are responsible for notifying WOML of any changes to your taxpayer information.

### 5.3 Self-Employment Taxes

- As an independent contractor, you may be subject to self-employment tax (15.3%) in addition to regular income tax.
- WOML recommends setting aside 25–30% of your earnings to cover federal and state tax obligations.
- WOML does not provide tax advice. Please consult a qualified tax professional.

### 5.4 Estimated Taxes

- If you expect to owe \$1,000 or more in taxes for the year, the IRS requires you to make quarterly estimated tax payments.
- Quarterly payment deadlines are typically: April 15, June 15, September 15, and January 15.

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## Onboarding Acceptance Checklist

During the WOML onboarding process, you will be required to electronically confirm each of the following items. Your electronic confirmation constitutes a legally binding agreement.

- Terms of Service — I have read and agree to WOML's Terms of Service (Section 1)
- Privacy Policy — I consent to the collection and use of my data as described in Section 2
- Independent Contractor Agreement — I understand I am an independent contractor, not an employee (Section 3)
- Lead Submission Standards — I will submit only accurate, consented, high-quality leads (Section 4)
- 1099 / Tax Acknowledgment — I understand my tax reporting obligations as an independent contractor (Section 5)
- Identity Verification — I consent to government ID verification as part of onboarding
- Stripe Connect Enrollment — I authorize WOML to facilitate payouts via Stripe Connect

By clicking 'I Agree' during onboarding, you acknowledge that you have read, understood, and agree to all terms in this document. This electronic acceptance is legally equivalent to a handwritten signature under the Electronic Signatures in Global and National Commerce Act (E-SIGN Act) and the Uniform Electronic Transactions Act (UETA).

- Questions? Contact WOML LLC at [womleads@outlook.com](mailto:womleads@outlook.com) | [womleads.com](https://womleads.com)

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